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| 10. | <b>A. vs. Beachside Recovery LLC</b><br><b>25-01534963</b> | <b>1. Demurrer to Complaint</b><br><b>2. Motion to Strike Portions of Complaint</b><br><b>3. Order to Show Cause re: Dismissal (Failure to Serve)</b><br><b>4. Case Management Conference</b><br><br><b>OFF CALENDAR</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 11. | <b>TVI, INC vs. Rojas</b><br><br><b>26-01557985</b>        | <b>Motion to Consolidate</b><br><br><b>WITHDRAWN</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 12. | <b>Kennedy vs. Emanuel</b><br><br><b>22-01248389</b>       | <b>Motion for Bifurcation</b><br><br>Defendants Glenn Emanuel, Diane Emanuel, Outdoor Associates LLC, 605 Investments LLC, Evergreen Media LLC, Glenn Emanuel, as Trustee for the Emanuel Family Trust, and Diane Emanuel as Trustee for the Emanuel Family Trust's Motion for bifurcation is GRANTED in PART. (Civ. Code §3295, subd. (d).) <p>The court will bifurcate and preclude evidence of Defendants' wealth and profits or financial condition only until after a trial during the liability phase of trial. Evidence of liability, compensatory damages, malice, oppression, or fraud entitling punitive damages relief will be allowed during the liability phase of trial.</p> <p>Civil Code section 3295(d) provides in relevant part, "The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294."</p> <p>"The purpose behind Civil Code section 3295, which allows bifurcation and preclusion of evidence of a defendant's wealth and profits during the liability phase of trial, is to minimize prejudice prior to the jury's determination of a prima facie case of liability for punitive damages. [citation omitted] However, such evidence is not to be excluded on the basis of prejudice when the information is relevant to liability." (<i>Notrica v. State Compensation Ins. Fund</i> (1999) 70 Cal.App.4th 911, 940.)</p> |

“As an evidentiary restriction, section 3295(d) requires a court, upon application of any defendant, to bifurcate a trial so that the trier of fact is not presented with evidence of the defendant's wealth and profits until after the issues of liability, compensatory damages, and malice, oppression, or fraud have been resolved against the defendant. Bifurcation minimizes potential prejudice by preventing jurors from learning of a defendant's “deep pockets” before they determine these threshold issues.” (*Torres v. Automobile Club of So. Calif.* (1997) 15 Cal.4th 771, 777-778.)

Here, Defendants seek bifurcation of trial into two phases—liability and punitive damages. Defendants contend that the jury will be confused given that there are two distinct burdens of proof: preponderance of evidence for compensatory damages and clear and convincing evidence for punitive damages. The court finds that Defendants’ request for bifurcation exceeds the scope of section 3295. The court further finds that Defendants’ argument that the issue of malice, oppression, and/or fraud should be bifurcated subject to the discretion provided to the court in Code Civ. Proc. §§598 and 1048 is not persuasive.

The evidence of liability for compensatory damages and malice, oppression, or fraud will necessarily involve overlapping evidence and witness testimony. Bifurcating the issue of whether or not Defendants’ conduct rises to the level of malice, oppression, or fraud will needlessly waste judicial and jury time by requiring re-litigation of similar facts, conduct, witnesses, and documents regarding Defendants’ conduct in multiple phases. Any potential confusion to the jury may be solved with jury instructions regarding the different burdens of proof as well as a special verdict.

Bifurcating evidence related to the amount of punitive damages and defendants’ profits or financial condition until after the trier of fact has determined defendants’ liability and plaintiff’s entitlement to punitive damages, in the first place, balances Defendants’ concerns with efficiency and the policy purposes behind section 3295.

Defendants’ motion to bifurcate trial of punitive damages is granted in part as set forth above.

Moving Defendants to give notice.